

TAMIL NADU NATIONAL LAW SCHOOL

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SUBJECT: LAW OF EVIDENCE

TOPIC: CIRCUMSTANTIAL EVIDENCE IN INDIA

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CONTENTS

LIST OF CASES.....	3
INTRODUCTION	4
SYNOPSIS.....	6
AN INTRODUCTION TO THE LAW OF EVIDENCE	10
CIRCUMSTANTIAL EVIDENCE IN INDIA	11
CIRCUMSTANTIAL EVIDENCE – TESTS FOR RELIABILITY	12
CIRCUMSTANTIAL EVIDENCE VS. DIRECT EVIDENCE	13
OTHER COUNTRIES’ STAND ON CIRCUMSTANTIAL EVIDENCE	16
SOUTH AFRICA.....	16
AUSTRALIA.....	17
CONCLUSION.....	18
BIBLIOGRAPHY	19

LIST OF CASES

1. Brijld v State of Rajasthan 1988 Raj LW 18, p.22 (Raj) (DB).
2. Governor of Bengal in Council v. Motilal Ghosh, 41 C 173: 20 IC 8114 Cr LJ 321
3. Jagan Nath v State of Himachal Pradesh 1982 Cr LJ 2289, p. 2291, (1982) 9 Cr LT 225, 1982 Sim LC 2273 (HP) (DB).
4. Kallu @ Masih & Ors v State Of Madhya Pradesh on 4 January, 2006.
5. Kenchegowda v P. Chaunaiya, 1953 Mys 22.
6. Manivel and Others v State of Tamil Nadu (Criminal Appeal No. 473 of 2001) [2008] SC 1239
7. People v Cahill [2001] 3 IR 494
8. Ram Prasad v State of Uttar Pradesh 1994 JIC 374 (All).
9. Richard Evans Ltd v Astley [1911] AAC 674
10. Shankarlal Gyarasilal Dixit v State Of Maharashtra on 17 December,
11. State of Andhra Pradesh v IBS Prasad Rao AIR 1970 SC 648, p.651, 1970 SC Cr R 533, (1969) 2 SCWR 807, 1970 Cr LJ 733.
12. State of Rajasthan v Sua 1984 Raj Cr Cas 187, p. 191 (Raj).
13. State of U.P v Ashok Kumar Srivastava [1992] CrLJ 1104
14. Subhash Chand Chauhan v C.B.I. on 4 January, 2005
15. The State Of Maharashtra v Pralhad Maruti Rankhamb on 23 February, 2015
16. Wakkat & Anr. v Uttar Pradesh, 2011 (2) SCALE 198 : (2011) 3 SCC 306.
17. Wright v Tatham, 112 Eng.Rep. 488 Exch.Ch.1837.

INTRODUCTION

"Better that ten guilty persons escape than that one innocent suffer."

The idea of circumstantial evidence is dealt with in the Indian Evidence Act elaborately. Circumstantial evidence means the evidence of circumstances and is sometimes referred to as presumptive evidence.¹ When evidence is given of circumstances, or relevant facts, from which an inference may be drawn about the fact in issue, it is called circumstantial evidence. Suppose A is charged with the murder of B. At the trial a witness C, on behalf of the prosecution, makes a statement that he saw A running away from the place where B's corpse was found, with a blood-stained knife in his hand, this is circumstantial evidence because B makes a statement about a circumstance, a relevant fact, which, if believed, may convince the court of the guilt of A.

Circumstantial or indirect evidence are the ones which attempts to prove the facts in dispute by providing other facts. Circumstantial evidences are not definite proof. They only provide a general idea as to what occurred at the crime scene.

Circumstantial evidence is evidence which, if accepted by the court, does require further inferences to be drawn from it. The inferences are to be drawn before it can establish the facts in issue in regard to which it is adduced. It is evidence of a fact from which the facts in issue (or their absence) might be inferred. Generally, the inference that is required to be drawn will be obvious; sometimes it is not so clear. In that instance such circumstantial evidence can be supported by other circumstantial evidence. The line between circumstantial evidence and speculation is neither clear not sharp.²

If the only evidence that could be adduced were that directly of facts in issue, or direct evidence, many claims would fail for lack of adequate proof. At some stage, resort must usually be made to circumstantial evidence, that is, any fact from the existence of which the judge may infer the existence of a fact in issue.

The common fear of manufactured evidence applies, perhaps even more strongly to circumstantial evidence: Circumstantial evidence may be as strong as to lead to the exclusion

¹ Vepa P. Sarathi, *Law of Evidence*, 6th Edition, Eastern Book Company, Pg. 13

² *Richard Evans Ltd v Astley* [1911] AAC 674

of fresh evidence to contradict the conclusion it indicates,³ although its strength should not be exaggerated in any direction.

While dealing with circumstantial evidence, it has been held that onus was on the prosecution to prove that the chain is complete and the infirmity of lacuna in prosecution cannot be cured by false defence or plea. The conditions precedent before conviction could be based on circumstantial evidence, must be fully established.⁴

Great care must be taken in evaluating circumstantial evidence and if the evidence relied on is reasonably capable of two inferences, the one in favour of the accused must be accepted.⁵ The circumstances relied upon must be found to have been fully established and the cumulative effect of all the facts so established must be consistent only with the hypothesis of guilt.

³ *People v Cahill* [2001] 3 IR 494

⁴ *Manivel and Others v State of Tamil Nadu* (Criminal Appeal No. 473 of 2001) [2008] SC 1239

⁵ *State of U.P v Ashok Kumar Srivastava* [1992] CrLJ 1104

SYNOPSIS

TITLE – AN ANALYSIS ON CIRCUMSTANTIAL EVIDENCE

Keywords: Evidence, circumstantial evidence, direct evidence, indirect evidence, admissibility

JUSTIFICATION FOR THE TOPIC

The aim of choosing this topic is to analyse circumstantial evidence. Circumstantial evidence has a reputation for generally being weaker and less valid evidence than direct evidence. It is necessary to emphasize that it is simply incorrect to assume that direct evidence is always stronger or more convincing than circumstantial evidence. Therefore, the researcher, through this project aims at introducing evidence law, pointing out the types of evidences, differentiating between direct and circumstantial evidence, highlighting the law concerning circumstantial evidence in other countries and discussing famous cases relating to circumstantial evidence.

Our justice system is one that is based on the presumption of innocence until proven guilty and Blackstone formulated that it is "better that ten guilty persons escape than that one innocent suffer."

Circumstantial evidence is indirect evidence that may lead to the inference that the defendant committed a crime even though there is no direct proof and it relies on inference to connect it to a conclusion of fact. It is a logical principle of deduction (deduction is reasoning from general known principles to a specific proposition). There is often more than one logical conclusion inferable from the same set of circumstances. Circumstantial evidence is especially important in civil and criminal cases where direct evidence is lacking. University of Michigan law professor Robert Precht said, "Circumstantial evidence can be, and often is much more powerful than direct evidence." A majority of convictions are based solely on circumstantial evidence if for no other reason than this type of evidence is more commonly encountered at crime scenes than direct evidence.

TENTATIVE CHAPTERISATION

- I. Introduction
- II. Law of Evidence in India and Famous Cases relating to Circumstantial Evidence in India
- III. Kinds of Evidence and Distinction between Direct Evidence and Circumstantial Evidence
- IV. Law of Evidence in Different Countries
- V. Conclusion

RESEARCH OBJECTIVES

- 1) To point out the sufficiency of circumstantial evidence
- 2) To understand the Judiciary's stand on circumstantial evidence
- 3) To compare the law relating to circumstantial evidence in various countries

RESEARCH QUESTIONS

- 1) Is Circumstantial Evidence sufficient for convicting a person?
- 2) How do the Courts in other countries treat Circumstantial Evidence?

HYPOTHESIS

The aim of choosing this topic is to analyse circumstantial evidence. Circumstantial evidence has a reputation for generally being weaker and less valid evidence than direct evidence. It is necessary to emphasize that it is simply incorrect to assume that direct evidence is always stronger or more convincing than circumstantial evidence.

SURVEY OF LITERATURE

A number of six books and five articles are reviewed.

REVIEW OF LITERATURE

BOOKS:

- 1) Ratanlal, Dhirajlal, The Law of Evidence, 25th Edition, Lexis Nexis – Circumstantial evidence is not considered to be proof that something happened but it is often useful as a guide for further investigation. Important cases like, Ramawati Devi v. State of Bihar, V.C Shukla v. State, Bodh Raj v. State of Jammu and Kashmir, etc. are mentioned in this book. This 25th edition incorporates the changes made by the Criminal Law (Amendment) Act, 2013 and critically analyses the latest case law. An entire chapter is dedicated for circumstantial evidence and the author explained the basics in a detailed manner.
- 2) Law of Evidence, 4th Edition, Universal Law Series – Circumstantial evidence is any evidence that requires some reasoning or inference in order to prove a fact. This type of evidence is sometimes referred to as “indirect evidence,” and it may have more than one explanation or lead to more than one conclusion. In many situations, more than one piece of circumstantial evidence may be used to draw the judge or jury to a specific conclusion. This book served as a guide to understanding circumstantial evidence. The concepts were explained in a crisp manner, it basically carries the shortest possible explanations for any concept relating to law of evidence.
- 3) Vepa P. Sarathi, Law of Evidence, 6th Edition, Eastern Book Company – Circumstantial evidence is evidence which strongly suggests something, but does not

exactly prove it. Circumstantial evidence simply helps people draw inferences about a fact, or the events that took place. This type of evidence is, on its own, considered to be weak or ineffective, so it is used in conjunction with direct evidence in both criminal and civil cases. Whether or not the judge or jury makes the intended inference has a major impact on the outcome of the case. The chapter on circumstantial evidence carried a number of important case laws in this book. The most recent and famous judgements are analysed by the author.

- 4) Mukund Sarda and D.S Chopra, Cases and Materials On Evidence Law, 2nd Edition, Thomson Reuters – There are popular misconceptions surrounding the validity of circumstantial evidence, as many people believe it is not as convincing as direct evidence. In reality, circumstantial evidence is an important tool used by prosecutors to convict people. Circumstantial evidence, which can be derived from a variety of sources, can be used to lay a foundation of belief, and backed up by witness testimony and direct evidence for credibility. The authors have commented on various important cases relating to law of evidence. It gives a practical touch to the provisions mentioned in the statute.
- 5) Dr. S.R Myneni, Law of Evidence, 1st Edition (2012), Asian Law House – Circumstantial evidence is unrelated facts that, when considered together, can be used to infer a conclusion about something unknown. Information and testimony presented by a party in a civil or criminal action that permit conclusions that indirectly establish the existence or nonexistence of a fact or event that the party seeks to prove. This book contains a lot of information about forensic sciences, criminology, gender studies and human rights.
- 6) Pete Earley, Circumstantial Evidence (1995) – A classic tale of murder and injustice in a small Alabama town has a great cast of characters: a sweet-faced and popular teenaged girl, some bumbling but well-meaning homicide detectives, another teenaged girl who's considered "trailer trash," her identical twin aunts who have bulldog tenacity, a ditzy white woman who likes her weed and her black boyfriends, a racist good-ol'-boy sheriff, a wily raconteur of a con man, three black lawyers with impeccable credentials in civil rights activism, and the stars of the story, a wronged black man and his long-suffering wife. Circumstantial Evidence is an entertaining mystery as well.

ARTICLES:

- 1) R.C Walker, Circumstantial Evidence in Homicide, Virginia Law Review – To state what circumstantial evidence is, the author distinguished between positive or direct evidence and indirect evidence. The author discusses the question of circumstantial evidence in homicide cases. The author considers different grades of homicide and the various degree of murder and manslaughter, and the circumstances which might be considered in determining the grade or degree. The weightage and sufficiency of the circumstantial evidence in general is valued. Inferences from a hypothetical case were

drawn to elucidate the concept of circumstantial evidence.

- 2) Sufficiency of Circumstantial Evidence in Criminal Case, Columbia Law Review Association – The author begins on a presumption of innocence. The author says that circumstantial evidence is testimony about a fact or facts from which the disputed material proposition may be inferred. The test of circumstantial is explained in detail by the author. The article focus on how jury deals with circumstantial evidence, if the circumstantial evidence test is rejected in favour of a uniform standard for all criminal cases, the traditional reasonable doubt test should continue to govern the jury's deliberations unless there are compelling reasons for changing it.
- 3) J. F. B, Conviction upon Circumstantial Evidence, The University of Pennsylvania Law Review – The author highlights various cases in with the US Courts convict a person solely based on circumstantial evidence. A detailed analysis is made on certain laws relating to circumstantial evidence in US. A few debatable provisions have been highlighted by the author and a justifications are made. The author also deals with a few important cases to explain the loopholes in laws relating to circumstantial evidence.
- 4) Pushkar Shamsher and Michel Hutt, Circumstantial Evidence, Asian Studies Center, Michigan State University – A hypothetical case is take to explain the law relating to circumstantial evidence in this paper by the authors. The importance of irrelevant facts which later become relevant is explained in this hypothetical case. The emotions involved while performing a crime, like murder is jotted down by the author. “Circumstantial evidence can turn a thief into a holy man, and a holy man into a thief.” If the circumstances make the accusations more plausible, then it’s very hard for any other considerations to get the prisoner released.
- 5) Michelle Fabio, Why Can’t Some Juries Convict on Circumstantial Evidence, Legal Zoom – The demerits of jury system is pointed out in the article by the author. The US and Australian Criminal Jury System is discussed in detail. The burden of proof for the prosecution is quite high, sometimes even with amazing advancements in technology, prosecutors aren't able to convince a jury that the defendant's guilt has been proven beyond a reasonable doubt and sometimes the public disagrees with that decision. But public opinion doesn't matter to the justice system, and where there's reasonable doubt in the jury's collective mind, there simply can be no conviction.

RESEARCH METHODOLOGY

The research is purely doctrinal in nature with emphasis on primary and secondary sources. It is conceptual and analytical with respect to exhaustive study of the concept and extending its application to another discipline.

AN INTRODUCTION TO THE LAW OF EVIDENCE

The enactment and adoption of the Indian Evidence Act was a path-breaking judicial measure introduced in India, which changed the entire system of concepts pertaining to admissibility of evidences in the Indian courts of law. Until then, the rules of evidence were based on the traditional legal systems of different social groups and communities of India and were different for different people depending on caste, religious faith and social position. The Indian Evidence Act introduced a standard set of law applicable to all Indians.⁶

The law is mainly based upon the firm work by Sir James Fitzjames Stephen⁷, who could be called the founding father of this comprehensive piece of legislation.

In contrast to the substantive laws, which deal with rights and liabilities, law of evidence is a procedural law which provides rules with regard to introduction of evidence to support the case and covers the fundamental principles of proof of facts, its type, quality and quantum etc in a legal proceeding. The Law of evidence is said to be the law of the forum or the *lex fori*. A few jurists write that the law of evidence come under the purview of neither substantive nor procedural law but come under adjective law, which means or which defines the pleading and procedure by which substantive laws are applied in practice. It is the machinery by which substantive laws are set and kept in motion.⁸

The Law of evidence is a very crucial piece of legislation which helps and guides the court in arriving at a conclusion with regard to the existence or non-existence of facts.

⁶ Gulshan Naqvee & Rajneesh Roshan, CLAT - 2015: Detailed Study Material of Legal Aptitude (1 ed. 2014).

⁷ C. D Field & Manmatha Nath Mukerji, The Law of Evidence in British India (1 ed. 1928).

⁸ Kat Kadian-Baumeyer, Substantive Law vs. Procedural Law: Definitions and Differences (video), study.com.

CIRCUMSTANTIAL EVIDENCE IN INDIA

“Witnesses may lie but circumstances do not”

It is sometimes said that circumstantial evidence is preferable to direct evidence as “witnesses may lie but circumstances do not.” Baron Parke observed: “Circumstantial evidence, if cogent and properly let in is of better probative value than direct evidence, for any scheming witnesses might concoct a well-knit story.”⁹ Salmond says: “it is usually more difficult to fabricate a convincing chain of circumstances than to utter a direct lie.”¹⁰ Sir James Fitzjames Stephen said, “It may be said that in strictness all evidence is oral, as documents or other material things must be identified by oral evidence before the court can take notice of them.”¹¹

CRIMINAL CASES - Circumstantial evidence is used in criminal courts to establish guilt or innocence through reasoning. With obvious exceptions (immature, incompetent, or mentally ill individuals), most criminals try to avoid generating direct evidence. Hence the prosecution usually must resort to circumstantial evidence to prove the *mens rea* levels of "purposely" or "knowingly."

In deciding the sufficiency of circumstantial evidence for the purpose of conviction, the court has to consider the total cumulative effect of all the proved facts, each one of which reinforces the conclusion of guilt, and if the combined effect of all these facts taken together is conclusive in establishing the guilt of the accused, the conviction would be justified, even though it may be that one or more of these facts by itself or themselves is, or, are, not decisive.¹² Where a case rests squarely on circumstantial evidence, the various sets of circumstantial evidence should be taken into consideration and their total effect should be such that they must lead unerringly to the guilt of the accused.¹³ Each fact must be proved individually and only thereafter, the sum total of the proved facts has to be taken into consideration.¹⁴ But this does not mean that before the prosecution can succeed in a case resting upon circumstantial evidence alone, it must meet each and every hypothesis, suggested by the accused, however extravagant and fanciful it might be.¹⁵ There cannot be any a priori preference between direct and circumstantial evidence and as, Phipson says, “the two forms are equally admissible...both forms admit of every degree of cogency from the lowest to the highest.”¹⁶

⁹ Wright v Tatham, 112 Eng.Rep. 488 Exch.Ch.1837.

¹⁰ Salmond on Jurisprudence, 12th edn, P.J. Fitzgerald, (London, 1966), p. 467.

¹¹ Sir James Fitzjames Stephen, The Indian Evidence Act

¹² State of Andhra Pradesh v IBS Prasad Rao AIR 1970 SC 648, p.651, 1970 SC Cr R 533, (1969) 2 SCWR 807, 1970 Cr LJ 733.

¹³ Brijld v State of Rajasthan 1988 Raj LW 18, p.22 (Raj) (DB).

¹⁴ Jagan Nath v State of Himachal Pradesh 1982 Cr LJ 2289, p. 2291, (1982) 9 Cr LT 225, 1982 Sim LC 2273 (HP) (DB).

¹⁵ State of Rajasthan v Sua 1984 Raj Cr Cas 187, p. 191 (Raj).

¹⁶ Phipson, Sydney L. Phipson, Law of Evidence, 10th edn, Michael V. Argyle, ed., (London, 1963), p.5.

CIRCUMSTANTIAL EVIDENCE – TESTS FOR RELIABILITY

Circumstantial evidence is as important as the direct evidence and there is no preference inter se, but, unlike direct evidence, circumstantial evidence requires logic, cogent and sequential arrangement of facts and their proper interpretation. In most cases, either the direct evidence is not available at all or is insufficient to found a conviction on. The circumstantial evidence sometimes plays a secondary and auxiliary role of proper corroboration of direct evidence as in the case of forensic evidence substantiating the ocular evidence. But, often, circumstantial evidence plays the primary role where the direct evidence is absent or too meagre. The Courts have repeatedly held that circumstantial evidence can be the sole basis for a verdict if the evidence is reliable.

In *Hanumant Govind Nargundkar v. Madhya Pradesh*,¹⁷ Mahajan, J. observed, “It is well to remember that in cases where the evidence is of a circumstantial nature, the circumstances from which the conclusion of guilt is to be drawn should, in the first instance, be fully established, and all the facts so established should be consistent only with the hypothesis of the guilt of the accused. The circumstances point out to the guilt of the accused, hence conviction is proper.”¹⁸ The circumstances should be of a conclusive nature and tendency, and they should be such as to exclude every hypothesis, but the one proposed to be proved. In other words, there must be a chain of evidence so far complete as not to leave any reasonable ground for a conclusion consistent with the innocence of the accused and it must be such as to show that, within all human probability, the act must have been done by the accused.”

Lord Simon said in *DPP v Kilbourne*¹⁹ that circumstantial evidence “works by cumulatively, in geometrical progression, eliminating other possibilities.” In the case of *Palanisamy v. Tamil Nadu*,²⁰ the Supreme Court, relying on a catena of its own earlier decision, held that a conviction can safely be based on circumstantial evidence provided it satisfies the following tests:

- 1) All the circumstances forming a chain of events must be fully established and no link in the chain should be found missing. It should be like a jigsaw puzzle whose pieces are correctly put in place.
- 2) The circumstantial evidence must be consistent with the hypothesis of the guilt only of the accused and none other.
- 3) It must be of conclusive nature.
- 4) It should be inconsistent with the innocence of the accused.
- 5) It should exclude every other hypothesis except the guilt of the accused.
- 6) The corpus delicti (dead body of the victim) need not be proved but the fact of death must be proved in a murder case.

¹⁷ 1952 SCR 1091

¹⁸ *Ram Prasad v State of Uttar Pradesh* 1994 JIC 374 (All).

¹⁹ (1973) AC 729, p. 758 (HL).

²⁰ (2008) 3 SCC 100.

The Supreme Court observed: “The Courts have to be watchful and avoid the danger of allowing the suspicion to take the place of legal proof for sometimes, unconsciously it may happen to be a short step between moral certainty and legal proof...there is a long mental distance between ‘may be true’ and ‘must be true’ and the same divides conjectures from sure conclusions.”²¹

CIRCUMSTANTIAL EVIDENCE VS. DIRECT EVIDENCE

English text-writers divided Evidence into:

- Direct or positive evidence and
- Indirect or circumstantial evidence.

Direct evidence is that which goes expressly to the very point in question and which, if believed, proves the point in question without aid from inference or reasoning, e.g., the testimony of an eye-witness to murder.²² Indirect or circumstantial evidence, on the other hand, does not prove the point in question directly, but establishes it only by inference. For example, if A was tried for the murder of B, evidence of the fact that A had a motive to murder B and that, at the time of B’s murder, A with a drawn sword was seen going towards the place where B was murdered and shortly afterwards was seen returning from the place with his clothes stained with blood would be indirect or circumstantial evidence. According to Section 5 of the Indian Evidence Act, 1872 (the Act), evidence may be given in a proceeding of the existence or non-existence of facts in issue and of such other facts as are declared to be relevant by the Act. If the evidence relates directly to the existence or non-existence of a fact in issue, the evidence is direct; but if it relates to the existence or non-existence of only a relevant fact, it is indirect or circumstantial. Direct evidence, as thus understood, should not be confused with the sense in which this term is used in Section 60 of the Act. In Section 60 the term “direct evidence” is used as opposed to “hearsay” evidence and not as opposed to “circumstantial” evidence, and therefore, in the sense in which this term is used in that section, circumstantial evidence must always be “direct”, i.e., the facts from which the existence of the fact in issue is to be inferred must be proved by “direct” and not by “hearsay” evidence.

Ordinarily, circumstantial evidence cannot be regarded as satisfactory as direct evidence. The circumstances may lead to particular inferences and the relationship to true facts may be more apparent than real. The value of circumstantial evidence has to be assessed on consideration

²¹ Wakkat & Anr. v Uttar Pradesh, 2011 (2) SCALE 198 : (2011) 3 SCC 306.

²² Governor of Bengal in Council v. Motilal Ghosh, 41 C 173: 20 IC 8114 Cr LJ 321

that it must be such as not to admit of more than one solution, and that it must be inconsistent with every proposition or explanation that is not true. If these conditions are fulfilled, circumstantial evidence may approximate to truth and be preferred to direct evidence.²³ For proof by circumstantial evidence four things are essential:-

- i. That the circumstances from which the conclusion is drawn be fully established.
- ii. That all the facts should be consistent with the hypothesis.
- iii. That the circumstances should be of a conclusive nature and tendency.
- iv. That the circumstances, should, to moral certainty actually exclude every hypothesis but the one proposed to be proved.

According to the Supreme Court it is an effect to say that “what the Court has to consider is whether the cumulative effect of the circumstances establishes the guilt of the accused beyond ‘shadow of doubt’. In the first place, ‘shadow of doubt’, even in cases which depend on direct evidence is shadow of ‘reasonable’ doubt. Secondly, in its practical application, the test which requires the exclusion of other alternative hypothesis is far more rigorous than the test of proof beyond reasonable doubt”.²⁴

In case where two of the accused persons had intentionally caused death of the deceased, there is no reason to discard evidence of witnesses.²⁵

In a prosecution for bribery the fact that money had been recovered from the bush shirt of the appellant, was, by itself held to be not sufficient, for convicting him, when the substantive evidence led to prove the offence was found to be not reliable.²⁶

The rule that facts are provable by circumstances as well as by direct testimony, has a considerable effect in preventing guilty or dishonest parties from tampering, or making way with witnesses and other instruments of evidence, which they would be more likely to do, if they knew that the only evidence which the law would receive against them was contained in a few easily-ascertained depositories.

²³ Kenchegowda v. P. Chaunaiya, 1953 Mys 22.

²⁴ Shankarlal Gyarsilal Dixit vs State Of Maharashtra on 17 December, 1980, Indiankanoon.org (2017), <https://indiankanoon.org/doc/1339608/> (last visited Mar 22, 2017).

²⁵ The State Of Maharashtra vs Pralhad Maruti Rankhamb on 23 February, 2015, Indiankanoon.org (2015), <https://indiankanoon.org/doc/195653073/> (last visited Mar 30, 2017).

²⁶ Subhash Chand Chauhan vs C.B.I. on 4 January, 2005, Indiankanoon.org (2017), <https://indiankanoon.org/doc/947178/?type=print> (last visited Mar 22, 2017).

“The sentence of the law to the moral sentiment of the public in relation to any offence is what a seal is to hot wax. It converts into a permanent final judgment what might otherwise be a transient sentiment. The infliction of punishment by law gives definite expression and a solemn ratification and justification to the hatred which is excited by the commission of the offence, and which constitutes the moral or popular is distinguished from the conscientious sanction of that part of morality which is also sanctioned by the criminal law. The criminal law thus proceeds upon the principle that it is morally right to hate criminals, and it confirms and justifies that sentiment by inflicting upon criminals punishments which express it. This close alliance between criminal law and moral sentiment is in all ways healthy and advantageous to the community”..... Stephen.²⁷

It is well-settled principle that the prosecution evidence has to be weighed and not to be counted. It is just because pedestrian or resident of the vicinity has not been cited as witness will be no ground throws away the otherwise reliable testimony of the eye-witnesses which is natural and inspires confidence.

It is not necessary that all eye-witnesses should specifically refer to the distinct acts of each member of an unlawful assembly.²⁸

Evidence in which inferences are required to connect to conclusion of fact is called circumstantial evidence. On the other hand, direct evidence supports the truth of an assertion directly—i.e., without need for any additional evidence or the intervening inferences.

²⁷ A. S Goldstein & J Goldstein, *Crime, Law and Society*, 22 (1 ed. 1971).

²⁸ *Kallu @ Masih & Ors vs State Of Madhya Pradesh* on 4 January, 2006, [Indiankanoon.org](https://indiankanoon.org/doc/583374/) (2006), <https://indiankanoon.org/doc/583374/> (last visited Mar 22, 2017).

OTHER COUNTRIES' STAND ON CIRCUMSTANTIAL EVIDENCE

SOUTH AFRICA

Circumstantial evidence provides indirect proof of the facts in issue, from which the court must make logical inferences. The court can make inferences and if it is enough then a guilty finding may be made. Secondary/circumstantial evidence is admissible to prove a matter protected in terms of private privilege but inadmissible in respect of public privilege.

Important Case – S v. Shabala²⁹

An intruder had entered a house and stabbed a woman three times and attempted to murder her husband. She died in hospital. The accused was charged with her murder and assault of her husband. When the husband was pursuing the intruder, the intruder fled through the bathroom window, leaving a canvas shoe there, and another one outside the house. There was an admission of guilt at the magistrate's court and pointing out of the crime scene by the accused. But at the trial court the accused denied everything. As evidence they found blood on his overalls and hair. In addition, the police who had found the shoe at the scene of the crime, sealed it and soon after bought a police dog to sniff it. The dog, an English hound, was named Tilly. This dog sniffed the shoe and was then brought to identify the shoe's match at an identification parade. The dog had jumped up at the accused and pawed him twice in a row. At the trial, evidence was given that the dog in question identified the accused as the owner of the canvas shoe that was found outside. According to the trainer who testified, dogs have a high level of 'nose power', and that this specific dog had not made a mistake in 18 months. He also testified to the training that she had received (both A and B certificates were attained). The trial court found him guilty and sentenced him to death. He appealed. Again, the question before the court was whether the evidence was admissible or not?

The court followed a novel approach. They held that if there is a sound factual basis upon which the evidence is based then the evidence can be admitted. By this they meant that if there is sufficient evidence to say that this evidence was accurate (training, certificates, practical experience and training of the dog etc.) it would be allowed.

On appeal, the accused was nevertheless found guilty despite the inadmissibility of this evidence because remaining circumstantial evidence was sufficient to convict him.

²⁹ 1986 (4) SA 734 (A)

AUSTRALIA

Circumstantial Evidence – This type of evidence is generally used as a basis for asking the jury to infer guilt. It is evidence that is used to prove the Crown hypothesis of the guilt of the accused. All the little strands of evidence are woven together and presented as being proof of the guilt of the accused. The strands of evidence must be such that all other reasonable hypotheses consistent with innocence are excluded. If there is a hypothesis consistent with innocence then the jury must acquit. Circumstantial evidence often can be explained away as not proving anything (or being wrongly interpreted by the prosecutors). It can be quite a complex area for a judge to direct on.

The point is one of basic importance in any case in which the Crown relies on circumstantial evidence in order to prove its case. As Dawson, J. put it in *Shepherd*³⁰: “The judgments in *Chamberlain* do not support the proposition that, in a case resting upon circumstantial evidence, the jury may only properly draw an inference of guilt upon facts — individual items of evidence — proved beyond reasonable doubt. Still less does the case establish that a direction in those terms should be given to a jury. Of course, it is recognized in *Chamberlain* that, if it is necessary for the jury to reach a conclusion of fact as an indispensable, intermediate step in the reasoning process towards an inference of guilt, then that conclusion must be established beyond reasonable doubt. But to say as much is to do little more than state a truism. It does not mean that each item of evidence taken into account in reaching that conclusion must, considered separately, be established beyond reasonable doubt.

Whether it is desirable for a trial judge to identify an intermediate conclusion of fact in his charge to the jury in order to instruct them that it must be proved beyond reasonable doubt will depend upon the particular case. Such an instruction will only be possible where the conclusion is a necessary link in a chain of reasoning. Even then, particularly when that is obvious, the instruction may not be helpful.”

³⁰ BarNet Jade - Find recent Australian legal decisions, judgments, case summaries for legal professionals (Judgments And Decisions Enhanced), Jade.io (1990), <https://jade.io/article/67599> (last visited Mar 26, 2017).

CONCLUSION

It is important to note that our justice system is one that is based on the presumption of innocence until proven guilty and Blackstone's formulation that it is "better that ten guilty persons escape than that one innocent suffer."

Circumstantial evidence can be enough to convict someone. The question to the judge will be, did the State prove its case beyond a reasonable doubt? It will come down to what is the actual evidence and can there be interpretations of the evidence other than that the accused committed a crime. The defence attorney will likely question the State's witnesses about other possible interpretations of the evidence. What those questions will be will depend on the exact nature of the evidence.

Thus, the burden of proof for the prosecution is quite high, sometimes even with amazing advancements in technology, prosecutors aren't able to convince the judge that the defendant's guilt has been proven beyond a reasonable doubt and sometimes the public disagrees with that decision. But public opinion doesn't matter to the justice system, and where there's reasonable doubt in the jury's collective mind, there simply can be no conviction.

Between direct and hearsay evidence, the law prefers direct evidence as it is first hand and intrinsically more reliable. Then, between direct and circumstantial evidence, what should be preferred? Jeremy Bentham observed: "Abstractly considered, it cannot be denied that circumstantial is inferior to direct evidence. Direct evidence requires no inference; circumstantial evidence can exist only by inferences, and there is scarcely one which is not erroneous."

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